

23STCV11988 23STCV11988

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C08%2F12%2F2026

Source SHA-256: 56fa8ea593dce2d56fd3c22aab873223fe9569cc2b48eeb70e613a022d43cf4e

Case Number: 23STCV11988 Hearing Date: August 12, 2026 Dept: 735

Marvin Aguinaga, et al. v.

Volkswagen Group of America, et al.

Motion for Attorney Fees

In

2024, Plaintiffs Marvin Aguinaga and Erica Landino filed a complaint under the Song Beverley Consumer Warranty Act against Defendant Volkswagen Group of America. The case settled in September 2025. Defendant Volkswagen does not challenge Plaintiffs' entitlement to fees, only the reasonableness of the amount of fees requested. (Kohen Dec., Ex. 3, p. 3, ¶H.) A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. A party challenging a fee request must specifically identify those parts of the bill which the party disputes.

Plaintiffs

move for an award of attorney's fees in the amount of \$32,120 and costs in the amount of \$1,269.39 plus a multiplier of 1.1 in the amount of \$3,212 for a total of \$36,601.39. Plaintiffs' request

is based on the work of two attorneys, Isaac Kohen and Tamara R.

Artolozaga. Kohen worked 53.9 hours at

\$550 per hour and Artolozaga worked 6.6 hours at \$325 per hour. In total, Plaintiffs' counsel spent 60.5 hours on the case—10.6 hours on prelitigation issues, 37.9 hours before trial and 12 hours for preparation of this fee motion.

Kohen

submits an affidavit attesting to his own and Artolozaga's credentials and experience. (Motion, Kohen Dec.,

¶¶15-25.) The hourly rates charged by Kohen and Artolozaga are reasonable based on the legal market, their experience, and the type of law at issue. Defendant asserts the rates are inflated and excessive because the case was not legally complex nor was any special skill displayed in presenting the claim. But Defendant fails to identify any evidence that would make counsel's rates excessive given counsel's background and experience.

Defendant

also argues the number of hours is excessive because counsel's work was "not from scratch" and counsel's motion for fees is "boilerplate." Defendant does not, however, identify any specific entries among the pre-trial work that are excessive or that suffer from block billing. Except for the fee motion itself, the number of hours requested is not excessive, although only six hours is reasonable for the fee motion. The mere fact that the complaint and other work may not have been from "scratch" does not justify the drastic reductions requested by Defendant.

Even assuming that Plaintiff's counsel relied on templates or prior research, Plaintiff does not request an unreasonable number of hours to ensure that the templated work was accurate and revised in accordance with the instant action.

Plaintiff

also requests a modifier of 1.1 for the contingent nature of the motion. The Court finds this reasonable considering the Serrano factors. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

The

Court declines to award costs in a motion for attorney's fees (regardless of the parties' stipulation). Plaintiff must instead file a memorandum of costs following which the awarding of costs is the clerk's ministerial task unless defendant files a motion to strike or tax costs.

CONCLUSION

The

court grants in part and denies in part Plaintiff's Motion for Attorney Fees and Costs. Plaintiff is awarded \$31,109 in attorney's fees calculated as follows:

41.9 hrs [Kohen] x \$550/hr + 6.6 hrs

[Artologaza] x \$325/hr = \$25,190

x 1.1 multiplier = \$27,709

+ \$3,300 (6 hrs [attorney fee
motion] x \$550/hr)

= \$31,109.

Plaintiff's request for an award of costs in
the amount of \$1,269.39 is denied.

Plaintiff

shall give notice.